

Opinion of the Court

interpretation of “official act” is supported by both text and precedent, we decline to “construe the statute in a manner that leaves its outer boundaries ambiguous and involves the Federal Government in setting standards” of “good government for local and state officials.” *McNally v. United States*, 483 U. S. 350, 360 (1987); see also *United States v. Enmons*, 410 U. S. 396, 410–411 (1973) (rejecting a “broad concept of extortion” that would lead to “an unprecedented incursion into the criminal jurisdiction of the States”).

III

A

Governor McDonnell argues that his convictions must be vacated because the jury was improperly instructed on the meaning of “official act” under § 201(a)(3) of the federal bribery statute. According to Governor McDonnell, the District Court “refused to convey any meaningful limits on ‘official act,’ giving an instruction that allowed the jury to convict [him] for lawful conduct.” Brief for Petitioner 51. We agree.

The jury instructions included the statutory definition of “official action,” and further defined the term to include “actions that have been clearly established by settled practice as part of a public official’s position, even if the action was not taken pursuant to responsibilities explicitly assigned by law.” Supp. App. 69–70. The instructions also stated that “official actions may include acts that a public official customarily performs,” including acts “in furtherance of longer-term goals” or “in a series of steps to exercise influence or achieve an end.” *Id.*, at 70. In light of our interpretation of the term “official acts,” those instructions lacked important qualifications, rendering them significantly overinclusive.

First, the instructions did not adequately explain to the jury how to identify the “question, matter, cause, suit, proceeding or controversy.” As noted, the Fourth Circuit held